Senate

General Assembly

File No. 217

February Session, 2026

Substitute Senate Bill No. 232

Senate, March 30, 2026

The Committee on General Law reported through SEN. MARONEY of the 14th Dist., Chairperson of the Committee on the part of the Senate, that the substitute bill ought to pass.

AN ACT CONCERNING STREAMING VIDEO SERVICES AND THE VOLUME OF COMMERCIAL ADVERTISEMENTS.

Be it enacted by the Senate and House of Representatives in General Assembly convened:

Section 1. (NEW) (*Effective October 1, 2026*) (a) As used in this section:

(1) "Cable operator" has the same meaning as provided in 47 USC 522, as amended from time to time;

(2) "Commercial advertisement" has the same meaning as such term is used in the Commercial Advertisement Loudness Mitigation Act, P.L. 111-311, as amended from time to time;

(3) "Commissioner" means the Commissioner of Consumer Protection;

(4) "Consumer" means any person who is physically present in this state and is a recipient, or a prospective recipient, of a streaming video service;

(5) "Department" means the Department of Consumer Protection;

(6) "Multichannel video programming distributor" has the same meaning as provided in 47 USC 522, as amended from time to time;

(7) "Person" means any individual, association, corporation, limited liability company, partnership, trust or other legal entity;

(8) "Streaming video service" means any service through which any video content, including, but not limited to, any video programming, is made available directly to consumers through a distribution method that uses the Internet protocol;

(9) "Streaming video service provider" or "provider" (A) means any person who makes a streaming video service available directly to consumers, and (B) does not include (i) any television broadcast station, (ii) any multichannel video programming distributor, including, but not limited to, any cable operator, or (iii) any person who makes available any video content, including, but not limited to, any video programming, without commercial advertisements;

(10) "Television broadcast station" has the same meaning as provided in 47 USC 325, as amended from time to time; and

(11) "Video programming" has the same meaning as provided in 47 USC 613, as amended from time to time.

(b) On and after July 1, 2027, and except as provided in subsection (c) of this section, no streaming video service provider shall transmit the audio of any commercial advertisement by way of a streaming video service at a volume that is louder than the volume established in the regulations adopted by the Federal Communications Commission for television broadcast stations or multichannel video programming distributors, including, but not limited to, cable operators, pursuant to the Commercial Advertisement Loudness Mitigation Act, P.L. 111-311, as said act and such regulations may be amended from time to time.

(c) (1) If a streaming video service provider believes that compliance with the provisions of subsection (b) of this section would pose a significant financial hardship to the provider, the provider may submit a waiver application to the Department of Consumer Protection in a form and manner prescribed by the Commissioner of Consumer Protection. The waiver application shall include:

(A) The name and business address of the provider;

(B) A description of the nature and extent of the alleged significant financial hardship and any supporting information or documents; and

(C) Any other information or documents the commissioner may reasonably require for the purposes of this subdivision.

(2) Not later than thirty days after the department receives a completed waiver application submitted under subdivision (1) of this subsection, the commissioner shall (A) review such application, (B) on the basis of such review and in the commissioner's sole discretion, issue a decision approving or disapproving such application and issuing or not issuing a waiver, and (C) send notice to the streaming video service provider, in a form and manner prescribed by the commissioner, disclosing the commissioner's decision and the basis for such decision.

(3) Each waiver issued pursuant to subdivision (2) of this subsection (A) shall be valid for a period of one year beginning on the date on which the commissioner sends notice to the streaming video service provider disclosing the commissioner's decision to approve such provider's application and issue such waiver, and (B) may be renewed for an additional one-year period (i) upon submission of a waiver renewal application made during the initial waiver period and in the manner set forth in subdivision (1) of this subsection for an initial waiver application, and (ii) subject to review and approval by the commissioner in the manner set forth in subdivision (2) of this subsection for review and approval of an initial waiver application.

(d) The Commissioner of Consumer Protection may adopt regulations, in accordance with the provisions of chapter 54 of the general statutes, to implement the provisions of subsections (b) and (c) of this section.

(e) Any violation of the provisions of subsection (b) of this section shall constitute an unfair trade practice for the purposes of subsection (a) of section 42-110b of the general statutes. The provisions of section 42-110g of the general statutes shall not apply to any such violation. Nothing in this section shall be construed as providing the basis for a private right of action for any violation of subsection (b) of this section.

This act shall take effect as follows and shall amend the following sections:		
Section 1	*October 1, 2026*	New section

Statement of Legislative Commissioners:

In Subsec. (b), "Beginning on" was changed to "On and after" for consistency with standard drafting conventions.

GL *Joint Favorable Subst. -LCO*

The following Fiscal Impact Statement and Bill Analysis are prepared for the benefit of the members of the General Assembly, solely for purposes of information, summarization and explanation and do not represent the intent of the General Assembly or either chamber thereof for any purpose. In general, fiscal impacts are based upon a variety of informational sources, including the analyst's professional knowledge. Whenever applicable, agency data is consulted as part of the analysis, however final products do not necessarily reflect an assessment from any specific department.

OFA Fiscal Note

State Impact:

Agency Affected	Fund-Effect	FY 27 $	FY 28 $
Consumer Protection, Dept.	GF - Cost	137,943	178,191
State Comptroller - Fringe Benefits[1]	GF - Cost	55,513	74,018

Note: GF=General Fund

Municipal Impact: None

Explanation

The bill prohibits streaming services from transmitting audio for commercial advertising above a certain volume and makes violations an unfair trade practice resulting in a total cost to the state of $193,456 in FY 27 and $252,209 in FY 28.

To meet the requirements of the bill the Department of Consumer Protection (DCP) will need to hire a state program manager and an accounts examiner for a salary and other expenses cost of $137,943 in FY 27[2] and $178,191 in FY 28, along with associated fringe benefits costs of $55,513 in FY 27 and $74,018 in FY 28. These employees are needed to draft regulations, create the waiver program and application, review financial hardship waivers, investigate complaints, and enforce the provisions of the bill.

The Out Years

[1]The fringe benefit costs for most state employees are budgeted centrally in accounts administered by the Comptroller. The estimated active employee fringe benefit cost associated with most personnel changes is 41.82% of payroll in FY 27.

[2]FY 27 costs reflect nine months of expenditures due to the bill's 10/1/26 effective date.

The annualized ongoing fiscal impact identified above would continue into the future subject to employee wage increases and inflation.

OLR Bill Analysis
sSB 232

AN ACT CONCERNING STREAMING VIDEO SERVICES AND THE VOLUME OF COMMERCIAL ADVERTISEMENTS.

SUMMARY

Beginning January 1, 2027, this bill prohibits a streaming video service provider from transmitting the audio of commercial advertising on a streaming service with a volume that is louder than the Federal Communications Commission (FCC) regulations allow for television broadcasts or multichannel video programming distributers (such as cable operators or satellite providers who provide multiple channels of video programs to subscribers or customers) (see BACKGROUND — *FCC Regulations*).

The bill allows a provider to request, and the Department of Consumer Protection (DCP) to approve, a one-year waiver of this requirement based on significant financial hardship of compliance, which may be renewed. The bill does not define "significant financial hardship."

Under the bill, DCP determines how to apply and the application must include:

1. the provider's name and business address,
2. a description of the nature and extent of the financial hardship and supporting information, and
3. other information DCP reasonably requires.

The DCP commissioner must review an application, issue a decision, and notify the provider in a way set by DCP within 30 days after receiving an application. The notice must state the decision and its basis.

If the commissioner approves a waiver, it is valid from the date the commissioner sends notice of its approval. A provider can apply to renew a waiver before it expires and DCP must review a renewal application in the same way as for an initial application.

The bill allows the commissioner to adopt regulations to implement these provisions. Any violation of the bill's volume restrictions is a Connecticut Unfair Trade Practices Act (CUTPA) violation but the bill does not permit a person to bring a private lawsuit or class action for violations as is generally permitted for CUTPA violations (see BACKGROUND — *CUTPA*).

EFFECTIVE DATE: October 1, 2026

STREAMING VIDEO SERVICES AND PROVIDERS

The bill applies to streaming video services, which are services that make video (programming by or similar to television broadcasts but not consumer generated media) available to consumers through the Internet. A streaming service video provider is any person or entity that provides this service to consumers, other than a television broadcast station, multichannel video programming distributer (such as a cable operator), or a person who provides video content without commercial advertisements.

The bill uses the federal cable communications law's definitions of television broadcast station, multichannel video programming distributer, and cable operator (47 U.S.C. 522).

BACKGROUND

FCC Regulations

FCC regulations generally require television stations, cable operators, satellite providers, and certain others to have commercial advertising at a similar volume to the programming it accompanies. It deems a provider in compliance when using certain equipment and methods and provides various safe harbor provisions (47 C.F.R. §§ 73.682 and 76.607).

In February 2025, the FCC began a rulemaking process to consider updating its commercial loudness rules, including whether to apply them to streaming platforms (FCC-25-16, Docket No. 25-72).

CUTPA

By law, CUTPA prohibits businesses from engaging in unfair and deceptive acts or practices. It allows the DCP commissioner, under specified procedures, to issue regulations defining an unfair trade practice, investigate complaints, issue cease and desist orders, order restitution in cases involving less than $10,000, impose civil penalties of up to $5,000, enter into consent agreements, ask the attorney general to seek injunctive relief, and accept voluntary statements of compliance. It generally allows individuals to sue. Courts may issue restraining orders; award actual and punitive damages, costs, and reasonable attorney's fees; and impose civil penalties of up to $5,000 for willful violations and up to $25,000 for a restraining order violation.

COMMITTEE ACTION

General Law Committee

Joint Favorable
Yea 20 Nay 0 (03/11/2026)